

particular risk that was known or knowable in light of the generally recognized and prevailing best scientific and medical knowledge available at the time of manufacture and distribution.” *Anderson v. Owens-Corning Fiberglas Corp.*, supra, 53 Cal.3d 987. “Drug manufacturers need only warn of risks that are *actually known or reasonably scientifically knowable*.” *Carlin v. Superior Court*, supra, 13 Cal.4th 1104. The Complaint fails to allege the specified risks were actually known or reasonably scientifically knowable at the time of manufacture and distribution, thus giving rise to a failure to warn.

Additionally, as stated above the duty to warn runs to the physician, not the patient. *Carlin v. Superior Court*, supra, 13 Cal.4th 1104. The Fifth Cause of Action alleges that defendant failed to warn healthcare providers and patients. The Demurrer as to the Fifth Cause of Action is **SUSTAINED** with leave to amend regarding Defendant’s duty to warn patients and whether the risks were actually or reasonably known to Novo at the time of manufacture and distribution.

Seventh Cause of Action. The Seventh Cause of Action of the Complaint is a Survival Action. CCP § 377.30 provides that “[a] cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent’s successor in interest...and an action may be commenced by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” Here, the First and Fifth Causes of Action are the only causes of action against Novo Nordisk Inc. As stated above, the Demurrer is sustained as to the First and Fifth Causes of Action, therefore the Survival Action cannot endure. The Demurrer as to the Seventh Cause of Action is **SUSTAINED** with leave to amend as to Defendant Novo Nordisk Inc.

In summary, the Demurrer is **SUSTAINED** without leave to amend as to the First Cause of Action; **SUSTAINED** with leave to amend as to the Fifth Cause of Action regarding a duty to warn patients and whether the risks were actually or reasonably known to Novo Nordisk Inc. at the time of manufacture and distribution; and **SUSTAINED** with leave to amend as to the Seventh Cause of Action. Plaintiff shall file an Amended Complaint within 15 days of service of notice of entry of order. Defendant is to prepare an Order consistent with the Court’s ruling. The parties are required to appear on today’s calendar to discuss the present case 210078, Shasta County case 209540, and whether Plaintiff intends to dismiss one of the actions as they appear to be identical.

KAPLANIS VS. SOUTHWICK, ET AL.

CASE NUMBER: 25CV-0208011

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal (“OSC”) issued on May 20, 2026, pursuant to Gov’t Code § 68608(b) to Plaintiff Patricia Kaplanis, in pro per, for failure to timely serve pursuant to CRC 3.110(b) and failure to timely prosecute. No response to the OSC has been filed. This action is **DISMISSED**. The clerk is instructed to prepare a separate Order of Dismissal. No appearance is necessary on today’s calendar.

NOLIND VS. DAVIE, ET AL.

CASE NUMBER: 25CV-0206940

This matter is on calendar for hearing on Plaintiff’s Motion to Compel Further Responses to discovery. On June 12, 2026, the Court received a Notice of Withdrawal of the Motion to Compel Further Responses to discovery and a Notice of Settlement. The matter is dropped from calendar and no appearances are necessary.

POLLYCOVE VS. HOFER, ET AL.

CASE NUMBER: 25CV-0209224

Tentative Ruling on Motion for Interlocutory Judgment: Plaintiff Dean Michael Pollycove moves for an interlocutory judgment directing partition of real property by sale pursuant to Code of Civil Procedure § 872.720, and for appointment of a partition referee pursuant to C.C.P. § 873.010.

The Court finds that this motion is premature. Code of Civil Procedure sections 874.311, et seq. is the Partition of Real Property Act. It sets forth the procedure for partition of real property held in tenancy in common where there is no record binding all the cotenants which governs partition of the property. Plaintiff's Complaint alleges the real property at issue here, 16 acres of unimproved land in Shasta County, is owned by Plaintiff and Defendants in shares as tenants in common. Plaintiff's Motion for Interlocutory Judgment represents that there is no agreement in a record binding all the cotenants which governs the partition of the property. Therefore, the Partition of Real Property Act applies. However, Plaintiff now seeks an order of partition by sale before the Court has determined the fair market value of the property, and before the cotenants have been given the opportunity to purchase the interest of the cotenant requesting sale as required by statute.

CCP § 874.316 provides that the court shall determine the fair market value of the property. If the cotenants agree to a value or method of valuation, the court shall adopt the value or the value produced by the agreed method. CCP § 874.316(b). Whether the parties agree to a value, or whether it is determined by an appraisal ordered by the court, the court then conducts a hearing to determine fair market value. CCP § 874.316(f). After this hearing, but before considering the merits of the partition action, the court shall determine the fair market value of the property and send notice to the parties of the value. CCP § 874.316(g). There is no evidence before the Court that the parties have agreed to a value, or a method of valuation.

The CCP provides that after the determination of value under Section 874.316, the court shall send notice to the parties that any cotenant may buy the interest of the cotenant that requested the sale. CCP § 874.317(a). There is no evidence before the Court that the cotenants have been given the opportunity to purchase the interest of the cotenant requesting the sale.

The Motion is **DENIED** without prejudice as premature. The parties are ordered to appear today to discuss the status of the case. The parties should be prepared to address whether the parties can agree to a value or method of valuation. If the parties cannot agree, then the Court will proceed to appoint a disinterested real estate appraiser as required by CCP § 874.316.

PORTFOLIO RECOVERY ASSOCIATES, LLC VS. FOOTE

CASE NUMBER: 25CVG-01284

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff Portfolio Recovery Associates, LLC seeks an order deeming admitted the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Brandee Foote by mail on December 30, 2025.

The Court does not have any record of Defendant filing a responsive pleading in this matter. The Proof of Service of Summons on file indicates Defendant was personally served on July 18, 2026. California Rule of Court 3.110(g) provides that if a responsive pleading is not served within the time limits specified in this rule and no extension of time has been granted, the plaintiff must file